

24SMCV02812 24SMCV02812

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Case Number: 24SMCV02812 Hearing Date: July 15, 2026 Dept: N

TENTATIVE ORDER

Plaintiffs Benjamin Berenji and Matthew Berenji's Motion to Compel Deposition of Defendant Apex Security Group, Inc.'s Employee Bruce Nance and Production of Documents is GRANTED. The parties shall meet and confer regarding the deposition of Bruce Nance to occur within sixty (60) days of entry of this order.

Plaintiffs Benjamin Berenji and Matthew Berenji's Request for Monetary Sanctions is DENIED.

Plaintiffs Benjamin Berenji and Matthew Berenji to give notice.

REASONING

Plaintiffs Benjamin Berenji and Matthew Berenji ("Plaintiffs") move the Court for an order compelling Bruce Nance, an employee of Defendant Apex Security Group, Inc. ("Defendant"), to appear for an in-person deposition at Plaintiffs' counsel's office, and to produce records requested in the deposition notices issued to those witnesses, within 20 days of entry of this order, with the document production to occur at least one hour before the date and time of his deposition. Plaintiffs argue that they have been attempting to take Nance's deposition since August 2025, but Defendant has failed to produce the witness, despite identifying him as a witness to the subject incident that is the subject of this action.

The Court finds that Plaintiffs are entitled to take the deposition of Bruce Nance, who was identified by Defendant as its employee who was a witness to the subject incident. (Mot., Gage Decl. ¶ 2.) Plaintiffs provide evidence that they have noticed Nance's deposition, and the deposition has not gone forward, nor have new dates been provided. (Mot., Gage Decl. ¶¶ 3-24.) Defendant states in the opposition that the deposition was proposed to go forward on July 20, 2026, but Plaintiffs contend that they are skeptical this deposition will go forward on that date. Accordingly, Plaintiffs Benjamin Berenji and Matthew Berenji's Motion to Compel Deposition of Defendant Apex Security Group, Inc.'s Employee Bruce Nance and Production of Documents is GRANTED. The parties shall meet and confer regarding the deposition of Bruce Nance to occur within sixty (60) days of entry of this order.

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).) The Court opts not to impose monetary sanctions here, as Defendant has proposed a date for deposition, and the Court will not issue sanctions based on speculation that the deposition will not go forward. Thus, Plaintiffs Benjamin Berenji and Matthew Berenji's Request for Monetary Sanctions is DENIED. However, the Court again advises the parties to continue attempting to resolve discovery disputes informally without motion practice, as the

Court may impose monetary sanctions as to other motions if proper.